HERMYSH KATSANDE
(In his capacity as the Executor of the Estate Late Denford Katsande)
versus
RM AFRICAPROPERTY CONSULTANTS (PRIVATE) LIMITED t/a RAWSON PROPERTIES
and
HAYES CONSTRUCTION (PRIVATE) LIMITED
and
SHERIFF OF THE HIGH COURT
and
REGISTRAR OF DEEDS N. O

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 26 March 2026

Opposed Court Application

G.R.J Sithole, for the applicant
Mrs S. Evans with her C. T. Masara, for the 1st respondent

MAMBARA J:

Introduction

[1] This is an opposed application for a declaratory order in terms of s 14 of the High Court Act [*Chapter 7:06*]. The applicant, as executor of the estate of the late Denford Katsande, seeks a declaration that eight identified residential stands in Tynwald Township belong to the estate, together with ancillary declaratory and interdictory relief aimed at stopping enforcement of an earlier eviction order, and impugning transfers and allocations said to have been effected through the Sheriff in relation to stands beyond a single 488 m² stand referenced in earlier litigation.

[2] Put more bluntly, the applicant asks this court to declare him and the estate owner of stands 18006, 18012, 18013, 17970, 17986, 18025, 18029 and 18039 and to neutralise the

effect of execution processes and orders which have already travelled through the courts in prior proceedings.

[3] The respondents oppose the application on multiple bases. They raise, among other points, that (i) the application is incompetent because what is dressed as a declaratur is in substance a disguised review and/or an indirect attack upon extant court orders; (ii) the issues sought to be reopened have already been determined by competent courts, such that the attempt is barred by principles of finality (res judicata/issue estoppel) and the broader doctrine against abuse of court process; and (iii) in any event, in the face of the existing orders and the Sheriff's own affidavit confirming their ownership rights, the applicant cannot establish the "direct and substantial interest" required to cross the first threshold for s 14 relief. The respondents seek dismissal with punitive costs.

[4] The record, however, is decisive. Whatever may be the rhetorical ingenuity of counsel, the law, and the court orders already in existence, leave this application with no room to stand.

Background

[5] The property from which the current conflict radiates is the remainder of Lot 12 Tynwald Township, in Zimbabwe, held under Deed of Transfer No. 4209/86.

[6] The history in the record shows (and the parties are broadly ad idem on the existence, though not on the implications, of the relevant orders) that the remainder of Lot 12 became the subject of multiple transactions and multiple court processes over time. Central to the present dispute are:

(a) an order of 14 November 2016 in HC 5182/15;

(b) an affidavit by the Sheriff, deposed to in February 2020, confirming the respondents' ownership of an extensive list of stands including those now in contention;

(c) a default judgment order of 16 November 2022 in HC 6744/22 in favour of the applicant (as executor) against Martin Sibindi and others;

(d) an order of 22 March 2023 in HC 873/23 (Ref HC 788/23) clarifying the meaning and legal reach of HC 6744/22 and declaring certain execution instruments null and void; and

(e) a default judgment eviction and demolition order of 15 May 2024 in R-HCH 7211/20, granted at the instance of the 1st and 2nd respondents against the applicant personally.

[7] The present application was issued in November 2025. The draft order attached to the initiating papers seeks, in relevant part, this relief:

[8] Extract of proposed relief (draft order):

(a) that the application be granted;

(b) that stands 18006, 18012, 18013, 17970, 17986, 18025, 18029 and 18039 "belong to the Estate of the late Denford Katsande";

(c) that the 1st, 2nd and 3rd respondents be interdicted from evicting the applicant (or persons acting through him) from those stands;

(d) further declarations impugning derivation of these stands from the 14 November 2016 order and declaring nullity of "transfers, allocations, registrations, or disposals" signed by the Sheriff in respect of stands other than the single 488 m² stand; and

(e) costs against the 1st and 2nd respondents.

[9] For completeness I set out the pivotal prior orders and the Sheriff affidavit in the form they appear in the record.

[10] Order: HC 5182/15 (14 November 2016)

In the High Court of Zimbabwe held at Harare; in the matter between Ian Musango and Rudo Musango (applicants) and Martin Sibindi and City of Harare Council (N.O.) and the Registrar of Deeds (N.O.); before Matanda-Moyo J; the order reads:

[11] "WHEREUPON, after reading documents filed of record and hearing counsel.

IT IS ORDERED THAT:

The application be and is hereby granted.

First respondent be and is hereby ordered to complete the developments per the subdivision permit within three months of this order and effect transfer of a certain piece of land situate in

the district of Salisbury called stand known as share 74 on the remainder of Lot 12 of Tynwald measuring 488 square metres to the applicants.

Failing which the Estate Agent Council be and is hereby authorised to appoint a developer to complete and supervise the project development to completion at the expense of 1st respondent.

In the event of the 1st respondent failing to sign all transfer papers the Sheriff be and is hereby authorised to sign all necessary papers for the said transfer to be effected and to dispose of 1st respondent's properties to finance the project.

The second and third respondent be and are hereby ordered to give effect to para 2 & 4 above.

The first respondent shall pay costs of suit."

[12] That order is explicit: it concerns a single stand—share 74—measuring 488 square metres. It does not, on its plain language, purport to allocate or transfer the universe of stands later developed or numbered on remainder of Lot 12.

[13] Sheriff's affidavit (February 2020) confirming respondents' ownership

The record contains an affidavit titled "Affidavit by Macduff Madega" signed by Macduff Madega in his capacity as Sheriff for Zimbabwe. Of present significance are paragraphs 1 and 2:

[14] "1. I confirm that Rawson Properties and Hayes Construction are the owners of the under mentioned stands although the property is registered under Martin Sibindi (Born 29 January 1949) ID No. 63-370944-K-77 Reg No. 4209/86 namely; … [a long list of stands is then set out, and it includes, among many others, stands 18006, 18012, 18013, 17970, 17986, 18025, 18029 and 18039].

2. Rawson Properties and Hayes Construction obtained ownership upon developing the remainder of Lot 12 Tynwald Township on the 11th December 2019 see copy of order attached hereto."

[15] Whether or not one agrees with the applicant's evaluative description of this affidavit, it is an instrument of record emanating from an officer of the court, and it squarely contradicts the applicant's thesis that the eight stands "belong to the estate".

[16] Order: HC 6744/22 (16 November 2022)

This order was granted by default before Tagu J. For present purposes it reads (as in the record):

[17] "IT IS ORDERED THAT:

The application for default judgment be and is hereby granted.

The first respondent be and is hereby ordered to effect transfer of title to plaintiff of land amounting to approximately 7.3 hectares held under deed of transfer 4209/86, being the remainder of Lot 12, Tynwald Township of Tynwald, Harare, which at time of sale, residential stands identifiable and known as land shares 3, 7, 8, 9, 23, 24, 28, 28A, 43, 44, 97, 96, 98, 99, 95, 100, 146, 147, 148, 149, 150 and 151.

Respondent is directed to sign necessary and relevant transfer papers as might be required by Registrar of Deeds for purposes of effecting transfer, within 7 days of this order.

The second respondent or his lawful deputy be and is hereby ordered to sign the transfer papers on the first defendant behalf and to do anything necessary to effect transfer in event of the 1st defendant failing to comply with paragraph (a) and (b) above."

[18] The applicant clings to this order as the platform for his asserted "98 stands." But the order itself speaks to "land amounting to approximately 7.3 hectares" and identifies "land shares". It is not, on its face, a title deed; and it is not, without more, a registration in the deeds registry.

[19] Order: HC 873/23 (Ref HC 788/23) (22 March 2023)

This order (granted by default) is pivotal because it squarely addressed the very mischief which now animates the present application: the attempt to inflate HC 6744/22 beyond its proper legal meaning. It was granted before MUSITHU J, and it states:

[20] "IT IS ORDERED AND DECLARED THAT:

The application be and is hereby granted.

The order granted to 1st respondent in HC 6744/22 pertaining to certain immovable property held under deed transfer No. 4209/86 relates to land shares and not stands created by subdivision permit currently existing over said immovable property (SD/WR/172/18).

The issuance of any writs of execution, power of attorney, and/or any transfer documents relating to the stands currently held under parent deed transfer No. 4209/86, purportedly in terms of the order in HC 6744/22 is null and void.

Applicants hold legal interest in immovable property held under deed transfer No. 4209/86 and are entitled to service of such future processes over said property as might be initiated by 1st respondent or his agents."

[21] This was not an aside. It was an express judicial clarification and a declaration of nullity directed at the very mechanism by which the applicant now seeks to win, indirectly, what he has been told—directly—he cannot win.

[22] Eviction and demolition default judgment: R-HCH 7211/20 (15 May 2024)

The first and second respondents obtained default judgment against the applicant personally, before DEME J. The operative portion reads:

[23] "IT IS ORDERED THAT:

Default judgment be and is hereby granted against the Defendant in favour of first and second Plaintiffs.

The Defendant and all those who claim occupation through him be and are hereby evicted and the Sheriff shall be authorized to demolish any structures on first and second Plaintiffs' stands No. 18008, 18009, 18006, 18012, 18013, 18014, 18021, 17970, 17975, 17973, 17986, 17989, 17991, 17993, 18075 and 18024 to 18039 of the Remainder of Lot 12 Tynwald Township of Tynwald.

Defendant to pay costs of suit on an attorney and client scale."

[24] Two things stand out. First, the eight stands which are the subject of the present application were expressly included in the eviction order. Second, that order already contained a punitive costs direction. It is not for this court, under the banner of s 14, to rewrite the meaning of that order, nor to neutralise it by indirection.

Issues

[25] The issues which crystallised in the papers and in oral argument are these:

[26] Whether the applicant has satisfied the jurisdictional threshold for declaratory relief under s 14 (direct and substantial interest in an existing, future, or contingent right) and, if so, whether this is an appropriate case for the court to exercise its discretion in favour of the declaratur sought. The relevant test is settled and repeatedly restated in our law since *Johnsen* v *Agricultural Finance Corporation* 1995 (1) ZLR 65 (S) at 72E–F.

[27] Whether the application is, in substance, a review (or rescission / setting aside) disguised as a declaratory application, and therefore incompetent. The warning against "declaratur as camouflage for review" is not novel; it is well illustrated in decisions such as *Dr Madondo N.O.* v *Dauramanzi & Ors* HH 214-17 (HC 2797/14).

[28] Whether the relief sought is barred, either by res judicata/issue estoppel, or by the broader Henderson principle against re-litigation that could and should have been ventilated earlier, given the existence of the MUSITHU J order (HC 873/23) and the DEME J eviction order (R-HCH 7211/20). (See *Henderson* v *Henderson* (1843) 3 Hare 100;67 ER 313). The Henderson rule, and its modern exposition in *Johnson* v *Gore Wood & Co* [2000] UKHL 65; [2002] 2 AC 1, are part of our common law toolkit in combatting re-litigation and abuse.

[29] Whether the applicant is entitled to default judgment (or any advantage) merely because the 2nd respondent's opposition is said to be defective or absent; and, corollary, whether the "unopposed" limb of relief would stand if scrutinised on the merits.

[30] The appropriate costs order; and whether this is a case for special measures to secure finality and protect the court process from repetitive litigation on the same subject matter, such as a limited "leave to sue" requirement in respect of further proceedings concerning the stands in question. The High Court has, in exceptional circumstances, issued decrees and directives of that character: City of Harare v Masamba HH 330-16 (HC 9428/14); *Mhini* v *Mapedzamombe* 1999 (1) ZLR 561 (H).

Submissions

[31] The submissions were made both in writing and orally. I summarise them as fairly as I am able.

[32] For the applicant, Mr Sithole submitted that the applicant had locus standi both in his personal capacity and, importantly, as executor. He argued that the estate purchased land

from Martin Sibindi and that the applicant has over the years sought to secure the estate's entitlement which, on his submission, equates to 98 stands.

[33] Counsel emphasised that the 14 November 2016 order in HC 5182/15 authorises transfer of only one stand measuring 488 m² (share 74). He submitted that any purported allocation, transfer, or conveyance "derived from" that order, beyond the single stand, is a nullity and should be declared such.

[34] Counsel further submitted that the eviction default judgment affects property belonging to an estate which was not a party to the eviction proceedings (since the applicant was sued in his personal capacity), and that the estate's rights are thus being impaired without the estate having had its day in court. He urged the court to exercise its discretion under s 14 to declare ownership and thereby "salvage the situation". He relied on the principle that an "interested person" may seek a declaratur even without consequential relief, citing Johnsen v Agricultural Finance Corporation 1995 (1) ZLR 65 (S).

[35] In *limine*, applicant's counsel contended that there was "no valid opposition" from the second respondent and pressed for default in relation to the second respondent's position.

[36] For the first and second respondents, Mrs Evans appearing together with Mr Masara submitted that the application is a classic abuse of the court process: it is repetitive, it attempts to reopen matters already resolved, and it seeks to use s14 as a substitute for procedures (review, rescission, appeal) which the applicant either did not pursue timeously or has already lost.

[37] Counsel submitted that the decisive answer is found in the order of MUSITHU J in HC 873/23 (Ref HC 788/23), which clarified that HC 6744/22 "relates to land shares and not stands" and declared null and void any writ, power of attorney, and transfer documents relating to stands purportedly issued under HC 6744/22. In counsel's submission, that order "sealed the applicant's fate" regarding any attempt to claim these stands by execution instruments.

[38] Counsel also relied on the Sheriff's own affidavit confirming that the 1st and 2nd respondents are the owners of the stands, including the eight now in issue. Counsel submitted that the applicant's approach is inconsistent with the record and that the application seeks to

procure, by declaratory label, relief which would effectively set aside or neutralise subsisting orders, including the eviction default judgment.

[39] Counsel invoked the court's inherent power to prevent abuse, and urged punitive costs. In doing so, counsel relied on a line of authority, local and comparative, about finality and the court's power to close its doors to vexatious repetition.

[40] In the same spirit, I would have invoked the colourful admonition of BARTLETT J in *Industrial Equity Ltd* v *Walker* 1996 (1) ZLR 269 (H)—a passage later repeated approvingly—where, after chronicling a pattern of procedural manoeuvres, the learned judge warned that "Walker has had a merry dance … [and] the time has come to pay the piper."

[41] The respondents pressed the point that the present application tries, again, to move the court to dance to music that has long since stopped.

Applicable law

[42] Section 14 of the High Court Act [*Chapter 7:06*] confers on this court a discretion, at the instance of an interested person, to inquire into and determine any existing, future or contingent right or obligation.

[43] The Supreme Court in *Johnsen* v *Agricultural Finance Corporation* 1995 (1) ZLR 65 (S) at 72E–F held that the jurisdictional condition precedent is that the applicant must show a direct and substantial interest in the right or obligation to be determined; the court will not decide abstract, academic, or hypothetical issues unrelated to such a right.

[44] Even where the applicant crosses that threshold, the court retains a discretion whether to grant the declaratur. That discretion must be exercised judicially, and the court is entitled to refuse relief where it would not serve a useful purpose, where it would improperly undermine other procedural regimes, or where it would amount to an indirect appeal or review.

[45] Our courts, in guarding the boundaries of procedure, have repeatedly warned against applications which are in truth reviews disguised as declaratory claims. In Dr Madondo N.O. v Dauramanzi & Ors HH 214-17, the court emphasised that where the complaint is about absence of authority/jurisdiction or irregular conduct by a statutory functionary, "the remedy

is / was to seek a review" and that, in such circumstances, adopting the declaratur route is adopting the wrong procedure.

[46] More broadly, abuse of process is not confined to the narrow confines of res judicata. The Henderson principle, established in Henderson v Henderson (1843) 3 Hare 100; 67 ER 313, bars parties from raising in later proceedings matters which were, or with reasonable diligence could and should have been, raised earlier.

[47] The *House of Lords in Johnson* v *Gore Wood & Co* [2000] UKHL 65; [2002] 2 AC 1, while rejecting a mechanistic application of Henderson, reaffirmed the controlling enquiry: whether, in all the circumstances, the later proceedings amount to misuse or abuse of the process of the court.

[48] In Zimbabwean practice, abuse of process has generated specific remedies in exceptional cases, including orders requiring prior leave before instituting further proceedings on the same subject matter. *City of Harare* v *Masamba* HH 330-16 is a detailed modern example, drawing on Zimbabwean and South African authorities and emphasising the High Court's inherent power to protect its process.

[49] The remedy is exceptional and must be confined narrowly to the mischief proved. But it exists. It is also reflected in the law report note of *Mhini* v *Mapedzamombe* 1999 (1) ZLR 561 (H), where an order was granted restraining a litigant from instituting further proceedings without leave of the court.

[50] I note, finally, that "clean hands" is not a decorative maxim. The Zimbabwean jurisprudence is clear that a litigant who seeks the court's aid must not do so while in defiance of court orders or while withholding material matter. The principle is captured in *Deputy Sheriff, Harare* v *Mahleza & Anor* 1997 (2) ZLR 425 (H) and has been adopted and applied in later cases. See also; *Associated Newspapers of Zimbabwe (Pvt) Ltd* v *Minister of State for Information & Publicity & Ors* 2004(1) ZLR 538 (S).

Analysis and determination

[51] I start where the law requires one to start: with the nature of the right the applicant asks this court to determine, and whether the applicant is an "interested person" with a direct and

substantial interest in that right. Johnsen teaches that this is not a trivial threshold enquiry; it is a jurisdictional discipline.

[52] The applicant's case is that the eight stands are estate property, and that the estate's rights are being invaded by eviction and by alleged wrongful "derivation" of multiple stands from the 2016 order which dealt with a single 488 m² stand.

[53] The difficulty is that the record does not present a landscape of unresolved rights requiring clarification. It presents a landscape of resolved judicial declarations and orders, which the applicant now wishes to bypass.

[54] Consider, first, the applicant's reliance on HC 5182/15 (14 November 2016). That order is plain: it authorises development and transfer of share 74 measuring 488 m² to the Musangos. It does not purport to allocate the remainder of Lot 12; it does not purport to create or transfer the later-numbered stands now in issue.

[55] The applicant asks the court to declare that the eight stands are "not lawfully derived" from that order. But one searches in vain in the present papers for any cogent forensic demonstration that the first and second respondents' asserted rights in those stands in fact derive from HC 5182/15.

[56] On the contrary, the Sheriff's affidavit of February 2020 states, unequivocally, that Rawson Properties and Hayes Construction "are the owners" of a long list of stands under the parent deed 4209/86 and that they obtained ownership upon developing remainder of Lot 12 in December 2019. The eight stands at issue are included on that list.

[57] This affidavit is not a mere piece of argumentative rhetoric. It is an instrument of record by the Sheriff himself. The applicant's draft order seeks to declare that "any transfers, allocations, registrations, or disposals effected by the Sheriff (or signed by the Sheriff)" beyond the single 488 m² stand are null and void. Yet the Sheriff's affidavit is precisely the kind of court-officer act which the applicant must confront head-on. The applicant does not do so in a manner that could satisfy the Johnsen threshold, still less the discretionary limb.

[58] Second—and decisively—one must confront HC 873/23 (Ref HC 788/23), the MUSITHU J order of 22 March 2023. It is not a peripheral order. It is the judicial answer to the applicant's attempt to convert HC 6744/22 into a vehicle for claiming stands.

[59] The MUSITHU J order declared that HC 6744/22 "relates to land shares and not stands created by subdivision permit … (SD/WR/172/18)" and further declared that any writs of execution, powers of attorney, and transfer documents relating to stands issued purportedly under HC 6744/22 are "null and void."

[60] If words have meaning, those words mean this: the applicant cannot, via execution instruments and Sheriff-driven paperwork from HC 6744/22, lawfully reach the later-numbered stands and claim them as if HC 6744/22 were a deeds registry.

[61] The present application is, in substance, an attempt to do precisely what MUSITHU J said cannot be done. By asking this court now to declare ownership of specific numbered stands and to invalidate Sheriff-related instruments in respect of stands, the applicant is attempting to re-open, by side door, what has already been shut by the front door.

[62] The applicant's argument that "the estate was not a party to the eviction order" because he was sued personally does not assist him. He is the same natural person. He is the executor who now invokes the estate's name. The eviction order was granted against him and those who claim occupation through him. The effect is that the court has already adjudicated (albeit by default) on the right of the first and second respondents to evict the applicant, and it did so in respect of stands which are the very stands now placed in the draft declaratur.

[63] If the applicant's complaint is that the eviction order was wrongly granted, or granted without the estate being heard, the law provides procedural routes: rescission, variation where competent, or (where relevant) review. The applicant does not pursue those routes here. Instead, he seeks a declaratur that would, in practical effect, neutralise enforcement of the eviction judgment, and do so by re-litigating the very ownership and entitlement which underpinned the eviction suit. That is precisely the kind of procedural inversion against which our courts have warned when they speak of "review disguised as declaratur."

[64] In that regard, the reasoning in *Dr Madondo N.O.* v *Dauramanzi & Ors* HH 214-17 is instructive. The court there rejected an attempt to clothe review-type grievances in declaratory clothing to escape time bars and procedural constraints. It said, in substance, that where the nature of the grievance is review, then review is the remedial architecture; a declaratur cannot be used as camouflage.

[65] Third, the application collides with the doctrine of finality.

[66] The Henderson principle is not about punishing litigants; it is about protecting the court process and the other side from repetitive litigation. In *Henderson* v *Henderson* (1843) 3 Hare 100; 67 ER 313, the court held that parties are obliged to bring forward their whole case; they cannot, by fragmenting litigation, reserve matters for later.

[67] In *Johnson* v *Gore Wood* (*supra*), Lord Bingham cautioned against dogmatism but reaffirmed that the court must assess whether later proceedings constitute abuse by raising matters that could and should have been brought earlier.

[68] In the present dispute, the applicant seeks a declaration that: the eight stands belong to the estate; the eviction order should not be enforced; and Sheriff-signed instruments beyond 488 m² are null. These are matters that collide with:

(a) the Sheriff's affidavit confirming respondents' ownership;

(b) the MUSITHU J order declaring stand-related execution instruments null and void; and

(c) the Deme J eviction order (and its costs direction).

[69] The applicant does not explain how those instruments can co-exist with the declaration he seeks. Instead, he asks this court to create a new declaratory overlay which would unmake, indirectly, what other courts have already made.

[70] That is not the function of s 14. Section 14 is a discretionary remedial tool to clarify rights, not a procedural solvent designed to dissolve extant judgments.

[71] The applicant also invoked constitutional fairness considerations. But constitutional rhetoric cannot be used to disguise procedural evasion. The Supreme Court in Johnsen itself made clear that the court does not decide abstract or hypothetical issues; and it is the applicant who must demonstrate the tangible justiciable advantage flowing from the declaration.

[72] Here the "advantage" is obvious: to stop eviction and to claim ownership. But the obstacle is also obvious: those matters have already been dealt with by court orders which remain extant.

[73] In any event, the applicant has not shown title to the stands in the sense known to our property law. Transfer of immovable property is effected by registration. The classical statement appears in cases such as *Machiva* v *Commercial Bank of Zimbabwe Ltd & Anor* 2000 (1) ZLR 302 (H).

The applicant's papers do not demonstrate registration of the eight stands in the estate's name. The relief sought is, essentially, to treat a declaratur as a substitute for deeds registration. That is not how property rights are secured.

[74] I turn to the applicant's "default judgment against the second respondent" point.

[75] Even if I accept (purely for argument) that the second respondent's opposition was defective or absent, that does not entitle the applicant to judgment by mere procedural default. A court retains a duty to satisfy itself that the relief sought is competent and that the legal basis exists. This is especially true where the relief sought would cut across extant orders and third-party interests, and where one respondent (the 1st respondent) is actively opposing on grounds common to both corporate respondents.

[76] The merits inquiry I have undertaken above shows that the application is fundamentally incompetent and ill-fated. It seeks relief that cannot be granted without undoing extant orders indirectly, contrary to well-established doctrine against procedural evasion and abuse. The application would therefore fail even if it were unopposed. Accordingly, the applicant's invitation to enter default judgment against the second respondent is declined.

[77] Ordinarily, costs follow the cause, and the usual scale is party and party. But punitive costs are granted where the conduct of a litigant warrants censure and deterrence. Zimbabwean courts have not hesitated to grant higher scale costs in suitable cases, particularly where there is persistent misuse of process and waste of judicial resources. In *City of Harare* v *Masamba* HH 330-16, MAFUSIRE J treated repetitive and incoherent litigation as an abuse warranting a strong remedial and costs response, including a leave-to-sue mechanism.

[78] The present matter exhibits the same core pathology: an attempt to keep litigating, in different procedural clothes, the same subject matter, despite judicial pronouncements that have already addressed the crucial hinge issues.

[79] There is a further dimension here: the applicant is not a naïve self-actor. He comes as executor, and he invokes the authority of the estate. With that authority comes an obligation to act with candour and with procedural propriety. Where the record shows existing orders that cut directly across the relief sought—above all the MUSITHU J order declaring stand-related execution instruments null and void—an applicant who seeks a declaration on stands must confront that order, not attempt to dance around it.

[80] The respondents asked the court to "rise to express displeasure." That phrase is apt. But judicial displeasure is not an end in itself; it must translate into principled, proportionate orders that protect the process while respecting access to justice.

[81] The court's inherent power to prevent abuse is not a mystery. It is acknowledged in our law and has been used, in carefully confined circumstances, to require leave before a litigant re-institutes proceedings on the same subject matter. *Mhini* v *Mapedzamombe* 1999 (1) ZLR 561 (H) is a reported example.

[82] *City of Harare* v *Masamba* (*supra*) is the modern leading exposition. In that judgment, Mafusire J set out, in detail, the basis upon which the court may, in exceptional cases, "shut its doors" temporarily or perpetually, and require leave before further processes are issued.

[83] This case is not the *City of Harare* v *Masamba* case; the personalities and context differ. But the legal question is of the same genus: whether the court should, to protect its process and the respondents from being repeatedly dragged back into litigation on the same parcel of dispute, impose a limited leave requirement.

[84] In my view, the posture of the present application, when viewed against (i) the existence of the MUSITHU J order, (ii) the existence of the eviction order covering the very stands now claimed, and (iii) the applicant's continued insistence on a declaratur that would undermine those orders, justifies a narrowly tailored protective measure.

[85] This is not a general "perpetual silence" decree against the applicant in all litigation. It is a subject-matter confined prophylactic order, limited to the eight stands and the rights and processes already determined in the cited orders.

[86] In crafting such an order the court also speaks, as a matter of precedent, to the proper use of s 14 and to the discipline of finality: a declaratur is not an appeal, not a review, and not a rescission.

[87] That is the point at which the Walker and Masamba anecdotes cease to be decorative and become doctrinally relevant.

[88] As BARTLETT J put it in *Industrial Equity Ltd* v *Walker* 1996 (1) ZLR 269 (H) at 308C, "Walker has had a merry dance. But he would … realise that the music has stopped and the time has come to pay the piper." So must the applicant, its time to take stock and stop wasting everyone's time.

[89] MAFUSIRE J's imagery in *City of Harare* v *Masamba* (*supra)* captures the same mischief in different words: Self actors "do not know when to stop" and that "papers keep falling like confetti at a wedding."

[90] The law does not forbid a litigant from persistence where genuine rights remain unresolved. But the law does forbid using the court's process as a treadmill for re-litigating what has already been determined.

[91] Litigants cannot be allowed to enjoy filing frivolous applications abusing the court and other litigators.

[92] This application, on its substance, is the kind of repeat-performing litigation which the court must now remove from the stage.

[93] I am also mindful of the stern reminder by Lord Denning that where something is a nullity, "you cannot put something on nothing and expect it to stay there." See *Macfoy* v *United Africa Co Ltd* [1961] 3 ALL ER 1169 (PC).

The applicant's application attempts to build an ownership edifice over stands in circumstances where (i) the Sheriff affidavit recognises ownership elsewhere, and (ii) an extant High Court order declares the relevant execution instruments null for stand-related purposes. The edifice cannot stand.

[94] I therefore conclude that:

[95] The applicant has not established the requisite "direct and substantial interest" in the eight stands for purposes of s 14, because the record contains authoritative instruments pointing away from his asserted ownership, and because his own earlier default judgment has already been judicially confined to "land shares" and not "stands" in HC 873/23.

[96] Even if the applicant could be treated as an interested person, this is not an appropriate case for the court to exercise its discretion to grant a declaratur. The application is, in substance, an impermissible collateral attack on extant orders. It is also abusive in that it attempts to reopen matters already determined.

[97] The application must therefore be dismissed.

[98] The attempt to obtain default judgment against the second respondent is dismissed, because the application is bad in law and would have been dismissed even if unopposed.

[99] Costs should be awarded on the legal practitioner and client scale, given the nature of the relief sought, the procedural impropriety of the chosen route, and the attempt to neutralise extant orders by indirection. The court's process must be protected.

[101] A limited leave-to-sue requirement, if it had been prayed for, would have been justified in respect of any further proceedings, whether in the applicant's personal capacity or as executor, that seek to litigate again the ownership, possession, occupation, eviction, transfer, or execution-related consequences concerning these eight stands, or that seek to impugn or circumvent the extant orders set out above.

Accordingly, it is ordered that:

1. The application for a declaratory order in HCH 5644/25 be and is hereby dismissed.
2. The applicant's request for default judgment against the second respondent is dismissed, the court finding that the application would in any event have failed on the merits.
3. The applicant shall pay the first and second respondents' costs on the legal practitioner and client scale, jointly and severally, the one paying the other to be absolved.

MAMBARA J:……

Mawonera Attorneys, applicant's legal practitioners
Mabuye Zvarevashe Evans, first and second respondents' legal practitioners